
DATA PROCESSING AGREEMENT (DPA)

WHEREAS, the Controller and Processor have entered into, or are entering into, a services agreement under which the Processor will process Personal Data on behalf of the Controller;

WHEREAS, the parties desire to set out in this Agreement their respective rights and obligations with respect to the processing of Personal Data in order to ensure compliance with applicable data protection laws, including the General Data Protection Regulation (GDPR) and applicable provincial and federal privacy laws;

NOW, THEREFORE, in consideration of the mutual agreements set forth herein, the parties agree as follows:

1. DEFINITIONS

1.1 Personal Data.

"Personal Data" means any information relating to an identified or identifiable natural person ("Data Subject"), as defined under applicable data protection laws.

1.2 Processing.

"Processing" means any operation or set of operations performed on Personal Data, whether or not by automated means, including collection, recording, organization, structuring, storage, adaptation, retrieval, consultation, use, disclosure, dissemination, restriction, erasure, or destruction.

1.3 Controller / Processor.

"Controller" means the party that determines the purposes and means of Processing Personal Data. "Processor" means the party that Processes Personal Data on behalf of the Controller.

2. PROCESSING INSTRUCTIONS

2.1 Scope.

The Processor shall Process Personal Data only on documented instructions from the Controller, including with regard to transfers of Personal Data to a third country or an international organization, unless required to do so by applicable law.

2.2 Notification of Conflict.

If the Processor determines that an instruction infringes applicable data protection law, it shall promptly notify the Controller and may suspend processing of the affected data pending resolution.

2.3 Purposes.

The Processor shall not Process Personal Data for any purpose other than as set out in Schedule 1 (Processing Activities) attached hereto.

3. SECURITY MEASURES

3.1 Technical and Organizational Measures.

The Processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, including: (a) pseudonymization and encryption of Personal Data; (b) ongoing confidentiality, integrity, availability, and resilience of Processing systems; (c) timely restoration of availability and access to Personal Data following a physical or technical incident; and (d) a process for regularly testing and evaluating the effectiveness of security measures.

3.2 Personnel.

The Processor shall ensure that persons authorized to Process Personal Data are subject to binding confidentiality obligations and receive appropriate data protection training.

3.3 Breach Notification.

The Processor shall notify the Controller without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a Personal Data breach.

4. SUB-PROCESSORS

4.1 Authorization.

The Controller grants the Processor general written authorization to engage sub-processors for the Processing activities described in Schedule 1.

4.2 Notice of Changes.

The Processor shall inform the Controller of any intended addition or replacement of sub-processors at least thirty (30) days in advance, giving the Controller the opportunity to object on reasonable grounds.

4.3 Sub-Processor Obligations.

The Processor shall impose data protection obligations on each sub-processor that are no less protective than those in this Agreement and shall remain fully liable to the Controller for the performance of sub-processors.

5. DATA SUBJECT RIGHTS

5.1 Assistance.

Taking into account the nature of the Processing, the Processor shall assist the Controller by appropriate technical and organizational measures in fulfilling the Controller's obligation to respond to requests for exercising Data Subject rights under applicable data protection laws, including the

rights of access, rectification, erasure, restriction, portability, and objection.

5.2 Timelines.

The Processor shall forward any Data Subject requests received directly by it to the Controller within five (5) business days of receipt and shall not respond to such requests without the Controller's written authorization.

6. AUDIT AND COMPLIANCE

6.1 Records.

The Processor shall maintain complete, accurate, and up-to-date records of all Processing activities carried out on behalf of the Controller and shall make such records available to the Controller upon request.

6.2 Audit Rights.

The Processor shall allow for and contribute to audits and inspections conducted by the Controller or a mandated auditor, upon reasonable prior written notice and during normal business hours.

7. DATA TRANSFERS

The Processor shall not transfer Personal Data to any country outside the jurisdiction of the Controller without the Controller's prior written consent and, where required, the implementation of appropriate transfer safeguards (e.g., Standard Contractual Clauses or equivalent mechanisms under applicable law).

8. TERMINATION AND DATA RETURN

8.1 Return or Deletion.

Upon termination of the underlying services agreement or upon the Controller's written request, the Processor shall, at the Controller's election, return all Personal Data to the Controller or securely delete or destroy it, and certify in writing that it has done so.

8.2 Retention.

The Processor may retain Personal Data to the extent required by applicable law, provided such data is Processed only as necessary for such retention purpose.

IN WITNESS WHEREOF

The parties hereto have executed this Agreement as of the Effective Date first written above. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

Data Controller

Signature: _____

Name: _____

Title: _____

Date: _____

Data Processor

Signature: _____

Name: _____

Title: _____

Date: _____